

STATE OF NEW YORK

8758--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 2, 2025

Introduced by M. of A. BARRETT, R. CARROLL, SHRESTHA, TAPIA, SIMONE, ROSENTHAL, SCHIAVONI, LEVENBERG, SIMON, STECK, OTIS, RAJKUMAR, SEAWRIGHT, PAULIN, STERN, GIBBS, FORREST, GALLAGHER, McDONALD, GRIF-FIN, STIRPE, HUNTER, CONRAD, MEEKS, EACHUS, WOERNER, WEPRIN, LUNSFORD, JACOBSON, ROMERO, KELLES, CUNNINGHAM, LEE, LASHER, HEVESI, SOLAGES, ROZIC, CLARK, PHEFFER AMATO, DE LOS SANTOS, SANTABARBARA, BORES, VALDEZ, P. CARROLL, BENEDETTO, BRONSON, SAYEGH, RAGA, SHIMSKY, K. BROWN, DINOWITZ, MAGNARELLI, BURDICK, KAY, REYES, GONZALEZ-ROJAS -- read once and referred to the Committee on Energy -- recommitted to the Committee on Energy in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law and the public service law, in relation to enacting the accelerate solar for affordable power (ASAP) act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "accelerate solar for affordable power (ASAP) act".
3 § 2. Legislative findings and intent. The legislature finds that
4 increasing distributed solar energy capacity and lowering intercon-
5 nection costs are essential for achieving the state's affordability,
6 economic development, and environmental goals. It is the intent of the
7 legislature to amend the climate leadership and community protection act
8 to set a new target for distributed solar energy capacity and direct the
9 public service commission to advance reforms to the utility intercon-
10 nection process to ensure timely and cost-effective integration of new
11 distributed energy resources, such as solar and energy storage systems,
12 into the electric distribution system.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10828-03-6

§ 3. Paragraph e of subdivision 13 of section 75-0103 of the environmental conservation law, as added by chapter 106 of the laws of 2019, is amended to read as follows:

e. Measures to achieve ~~[six]~~ twenty gigawatts of distributed solar energy capacity installed in the state by two thousand ~~[twenty-five]~~ thirty-five, nine gigawatts of offshore wind capacity installed by two thousand thirty-five, a statewide energy efficiency goal of one hundred eighty-five trillion British thermal units energy reduction from the two thousand twenty-five forecast; and three gigawatts of statewide energy storage capacity by two thousand thirty.

§ 4. The public service law is amended by adding a new section 66-x to read as follows:

§ 66-x. Interconnection reforms. 1. (a) Within ninety days of the effective date of this section the commission shall issue an order requiring every electric corporation to file a report with the commission which shall include itemized costs of completed upgrades to the electric distribution system required in order to interconnect new distributed energy resources in the prior calendar categorized by upgrade type and equipment type annually by March thirty-first. Such reports shall be accompanied by sufficient supporting documentation as determined by the commission, and shall be subject to inspection and public comment before adoption by the commission. Adopted reports received pursuant to this paragraph shall be the basis for electric corporations to develop future distribution upgrade cost estimates.

(b) Electric corporations shall track actual costs of all distribution upgrades they perform and disclose such costs to the department and to the distributed energy resource company that paid for the upgrade. The department shall maintain a database on its publicly accessible website of all disclosed cost data and annual reports submitted pursuant to paragraph (a) of this subdivision.

2. The commission shall consider proposals to create greater cost-certainty for distribution upgrades in order to limit the risk of uncapped utility cost overruns, and the commission shall issue an order to increase cost-certainty and counteract utility cost overruns within one hundred eighty days of the effective date of this section.

§ 5. Subdivision 1 of section 66-j of the public service law is amended by adding a new paragraph (j) to read as follows:

(j) "Flexible interconnection" means the use of smart-grid technology to monitor and actively manage distributed energy resources.

§ 6. Section 66-j of the public service law is amended by adding two new subdivisions 2-a and 6-a to read as follows:

2-a. Flexible interconnection. (a) The commission shall direct every electric corporation to develop a proposal for a flexible interconnection program to be established in the state. Within ninety days of the effective date of this subdivision, electric corporations with active flexible interconnection pilot projects shall file a flexible interconnection implementation plan, including proposed tariff modifications and interconnection agreement contract language, with the commission. The commission shall solicit public comments on the electric corporation proposals, consider alternative proposals, convene at least two technical conferences, and consult with stakeholders throughout the process of program development. Every electric corporation which does not have an active flexible interconnection pilot project shall file comments in response to the initial proposal and may file alternative proposals for consideration. Within one year of the effective date of this subdivision, the commission shall issue an order establishing a

1 uniform statewide flexible interconnection program. Such program shall
2 include clearly defined limits to annual energy curtailment for solar
3 energy systems and shall include transparent pricing for customer-funded
4 equipment, software and operating expenses. This program shall be tech-
5 nology agnostic, and electric corporations must consider customer-pro-
6 posed flexible interconnection solutions that meet the technical
7 requirements of the electric corporation.

8 (b) The commission shall establish guidelines and timelines for the
9 implementation of flexible interconnection procedures to lower the cost
10 and shorten the timeline to integrate distributed energy resources.

11 6-a. Distributed energy resource capacity expansion. (a) Within three
12 months of the effective date of this subdivision, the commission shall
13 establish a distribution system investment program whose purpose is to
14 identify and direct electric corporations to implement proactive
15 distribution upgrades that create distributed energy resource hosting
16 capacity. Such program shall be integrated into the coordinated grid
17 planning process, and electric corporations shall submit annual reports
18 to the commission detailing actions taken and electric corporation
19 investments made to expand hosting capacity for distributed energy
20 resources.

21 (b) The commission shall establish a defined distribution system volt-
22 age threshold of 69KV, excluding any lines under federal energy regula-
23 tory commission jurisdiction, such that electric infrastructure owned by
24 electric corporations with a voltage at or below 69KV shall be consid-
25 ered distribution for the purposes of distributed energy resource inter-
26 connection and distributed energy resource compensation. All distributed
27 energy resources seeking to interconnect to the distribution system
28 shall be eligible for interconnection under the New York state standard-
29 ized interconnection requirements and shall be eligible for compensation
30 under the value of distributed energy resources tariff.

31 § 7. Implementation. 1. The New York state energy research and devel-
32 opment authority (NYSERDA), in collaboration with the department of
33 public service, is hereby directed to file a proposal to continue the
34 NY-Sun program to develop and implement initiatives necessary to cost-
35 effectively achieve the new distributed solar goal set forth in this
36 act. The implementation plan shall include incentives and other initi-
37 atives to support rooftop solar for homes and businesses as well as
38 community solar, with at least thirty-five percent of program investment
39 benefiting low- to moderate-income households and disadvantaged communi-
40 ties. The implementation plan may include rate design improvements and
41 additional interconnection reforms to lower the cost of the program.

42 2. From available funds, the public service commission is hereby
43 directed to issue an order authorizing additional funding to NYSERDA for
44 the continuation of the NY-Sun program. Such funding shall be sufficient
45 to support the development and implementation of the initiatives
46 required to meet the new distributed solar goal. NY-Sun funding may be
47 authorized by the commission in increments to control program costs,
48 provided that these increments must be sufficient to support at least
49 two gigawatts of solar energy capacity each. The commission shall ensure
50 that the NY-Sun program operates continuously, without interruption,
51 until the distributed solar goal is reached.

52 3. The public service commission is hereby directed to issue orders
53 necessary to effectuate the provisions and modifications set forth in
54 this act.

55 § 8. This act shall take effect immediately.